

17. *Shepard v. People 2.0 North America LLC, et al*, Case No. CIVSB2221511
Plaintiff's Motion for Preliminary Approval of Class Action Settlement
4/16/26, 1:30 p.m., Dept. S-17

This matter was continued from its original hearing date on April 16, 2026

The Court would again **CONTINUE** this matter. The settlement in this matter seeks to incorporate the parties and causes from the PAGA companionate case in the CIVSB2301269. The two matters have *not* been consolidated nor has the instant case (CIVSB2221511) been amended to sufficiently cover all the causes covered in the settlement. (See Second Amended Complaint [with no articulation of a PAGA cause].)

Case law requires that the releases be tailored to the claims that were, or reasonably could have been, asserted in the lawsuit based on the facts alleged in the operative complaint (and, in PAGA cases, the notice letter to the LWDA). (See, e.g., *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538-539 ["a court cannot release claims that are outside the scope of the allegations of the complaint"].) As currently pleaded, the operative complaint does not contain a PAGA cause. Thus, a consolidation of the CIVSB2301269 matter, *or* a Third Amended Complaint that adds the PAGA cause in *this* matter, is necessary. The Court would continue again in order to allow the movant to resolve this concern.
